

Andhra Pradesh Excise (Grant of licence of selling by in-house and conditions of licence) Rules, 2005

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State of Andhra Pradesh - Act

Andhra Pradesh Excise (Grant of licence of selling by in-house and conditions of licence) Rules, 2005

ANDHRA PRADESH

India

Andhra Pradesh Excise (Grant of licence of selling by in-house and conditions of licence) Rules, 2005

Rule

ANDHRA-PRADESH-EXCISE-GRANT-OF-LICENCE-OF-SELLING-BY-IN-HOUSE-AND-CONDITIONS-OF-LICENCE-RULES-2005 of 2005

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Andhra Pradesh Excise (Grant of licence of selling by in-house and conditions of licence) Rules, 2005

Published vide Notification No. G.O.Ms.No. 999, Revenue (Ex.II), dated 24.5.2005

Last Updated 26th October, 2019

G.O.Ms.No. 999. - In exercise of the powers conferred by Section 72 read with Sections 17, 28 and 29 of the Andhra Pradesh Excise Act, 1968 (Act

17 of 1968

) and Ordinance 5 of 2005 the Governor of Andhra Pradesh hereby makes the following Rules:

1.

Short title, extent and commencement.

(1)

These rules may be called the Andhra Pradesh Excise (Grant of licence of selling by in-house and conditions of licence) Rules, 2005.

(2)

They shall extend to all the areas where the Andhra Pradesh Excise Act, 1968 is in force.

(3)

They shall come into force at once.

2.

Application.

- These rules shall apply for the grant of Licence for sale of Indian Liquor and Foreign liquor of selling by in-house as defined in sub-section (18) (A) of Section 2 of A.P. Excise Act, 1968 and transport and sale of Indian Liquor and Foreign Liquor by such licensees.

3.

Definitions.

(1)

In these rules unless the context, otherwise requires:-

(a)

"Act" means the Andhra Pradesh Excise Act, 1968,

(b)

"Dry day" means a day on which no liquor shall be sold or served in the licensed premises:

(c)

"Excise Adhesive Label" means the label designed and approved by, printed and supplied by under the supervision and control of the Commissioner of Prohibition and Excise, from time to time for the purpose of its affixture to sealed bottles of different sizes containing Indian liquor (i) manufactured within the state and (ii) manufactured outside the state and imported into the state;

(d)

"Foreign liquor" includes every liquor imported into Indian other than Indian Liquor,

(e)

"Form" means a form appended to these rules,

(f)

"Indian Liquor" means liquor produced, manufactured or compounded in India after the manner of Gin, Brandy, Whisky or Rum imported from Foreign Countries and includes. Wine, Beer, Milk punch and other liquors consisting of or containing any such spirits but does not include Foreign liquor".

(g)

"In-house" means the privilege granted under this Act for sale of Indian Liquor and Foreign Liquor by Club, Guest House of A.P. Tourism Development Corporation, Military canteen, Airport transit lounge for International Air passengers.

(h)

"Licence" means licence granted under these rules;

(i)

"Licencee" means holder of such licence;

(j)

"License Fee" means annual license fee as shown in the schedule appended to these rules and includes proportionate license fee.

(k)

"Licence period" means a period of 12 months beginning from the 1st day of July, of the year and ending with 30th June of the following year or part thereof.

(l)

"Highway" means a national Highway or a State Highway but shall not include the part of the National Highway or State Highway which passes within the limits of a Municipal Corporation, Municipal council or the Gouthan in any village or

panchayat area;

(m)

"Population" means the figure of population as officially published in the latest census.

(n)

"Proportionate Licensee Fee" means licensee fee calculated proportionately to the whole months of the licence period. Provided that a part of a month shall be reckoned as a whole month. (o) "Transport Permit" means a permit issued by the competent officer for transport of IL&FL from the A.P.B.C.L. or CSD depot to the licensed premises as the case may be.

(2)

The words and expressions used but not defined in these rules shall have the meanings assigned to them in the Andhra Pradesh Excise Act, 1968 and Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor - Permits) Rules, 2005.

4.

Licences and Permits.

- See Section 2(18) (A) of A.P. Excise Act, 1968.

(i)

In-house Licence (in Form TD-1). - The Andhra Pradesh Tourism Development Corporation Limited shall be granted licence in Form TD-1 to sell Indian Liquor and Foreign Liquor in glasses or pegs for consumption within the licensed premises of the Guest Houses run by it.

(ii)

In-house Beer Pub (in Form TD-2). - The Andhra Pradesh Tourism Development Corporation Limited shall be granted licence in Form TD-2 to sell only Beer for consumption within the licensed premises of the facilities run by the Andhra Pradesh Tourism Development Corporation Limited.

(iii)

In-house Club licence (in Form C-1). - The holder of the licence in Form C-1 shall be permitted to sell Indian Liquor and Foreign Liquor in glasses or pegs for consumption within the licensed premises of the club by the bona fide members but he shall not sell Indian Liquor and Foreign Liquor for removing it out of the licensed premises of the club.

Provided that the licence holder shall not purchase or stock Indian Liquor and Foreign Liquor in bottles of sizes less than 750 ml. except beer.

(iv)

In-house consumption in Military canteens (Licence in Form CS-1). - The holder of licence in Form CS-1 shall be permitted to sell Foreign liquor and Indian liquor, in glasses or pegs for consumption within the licensed premises by the defence personnel within the military' canteens' or clubs, but he shall not sell the liquor for removing it out of the licensed premises.

(v)

In-house sale in Military Canteen (Licence in Form CS-2). - The holder of the licence in Form CS-2 may be permitted to sell Foreign liquor and Indian Liquor to the defence personnel including Ex.-service men in sealed or capsuled bottles in quantities as per the scale prescribed for defence personnel by Government of India from time to time, but he shall not allow consumption at the licensed premises.

(vi)

Canteen Stores (in-house Storage and supply) Licence (in Form CS-3). - The holder of the licence in Form CS-3 may be permitted to draw liquor from the Distilleries/Breweries situated in Andhra Pradesh and import Indian Liquor from the Distilleries & Breweries situated anywhere in the Country and Foreign Liquor from the Bonded houses of the Customs Department of Government of India and sell Foreign Liquor and Indian Liquor in quantities of not less than 9 litres in sealed or capsuled bottles at any one time and in any single transaction to the other Military canteens holding licenses in Form CS-1 and CS-2 but he shall not carry on sale or allow consumption of the liquor in the licensed premises as permitted in the Licenses of CS-1 and CS-2.

(vii)

Airport transit lounge Licence (in Form AL-1). - The holder of the licence in Form AL-1 may be permitted to sell Foreign Liquor in sealed or capsuled bottles to the international Air passengers transiting the Air port to the extent of their eligibility under the Baggage Rules 1978 made under the Customs Act, 1962 for their own consumption.

(viii)

Event pennit (in Form EP-1). - The holder of the permit in Form EP-1 may be permitted to sell or serve Foreign liquor and Indian liquor in glasses or pegs for consumption within the licensed premises in the fairs, festivals or on other specified occasions, but he shall not sell the liquor for removing it out of the licensed premises at such places.

5.

Application for licence and procedure for grant of Licence.

(1)

The application for the grant of a licence shall be in Form IHA-1 for Licenses in Forms TD-1, TD-2, CS-1, CS-2, CS-3, AL-1 and EP-1 and in Form IHA-2 for licence in Form C-I respectively and may be submitted to the Prohibition and Excise Superintendent of the district where the applicant's premises is to be licensed or other authority competent to grant licence.

(2)

The Prohibition and Excise Superintendent, after making such enquiry as he may think necessary, to ascertain the bona fides of the applicant and verifying the particulars furnished in the application grant the licence if he is competent to grant. In case he is not competent to grant the licence applied for, examine the suitability of the premises for granting License and forward the same to the Commissioner of Prohibition and Excise along with his report through the Dy. Commissioner of Prohibition and Excise.

(3)

The Commissioner of Prohibition and Excise may grant the licence after causing such enquiry as he may deem fit.

(4)

The applicant before issue of the licence shall execute a counter part agreement in Form CG-1 on the Stamp paper of requisite value as per provisions of the Indian Stamp Act, 1899.

6.

Persons not eligible for grant of licence.

- The following persons are not eligible for grant of licences:-

(i)

persons below the age of twenty one years.

(ii)

persons who are undischarged insolvents or who have been convicted of offences under the provisions of the Act or the Customs Act, 1962 or Narcotics Drugs and Psychotropic Substances Act, 1985 (Central Act 61 of 1985) or convicted under Andhra Pradesh intoxicating liquors (Prohibition of Advertisements) Act, 1978 or convicted non-bailable offences or are habitual offenders.

(iii)

Persons suffering from leprosy or other contagious disease only in cases where such persons have to handle the stocks of liquor or beer in premises elsewhere personally.

(iv)

Defaulters in the payment of excise revenue to the Government.

7.

Restrictions on the grant of License.

(1)

A license in forms TD-1, TD-2, C-I, CS-1 and EP-1 involving consumption of liquor at the premises shall not be granted.

(I)

Unless the premises has:-

(a)

a minimum plinth area of 100 Sq. meters.

(b)

Sanitary equipment like wash basin, water closet:

(c)

Facility for cooking and serving complete meals of good quality to the consumers,

(d)

Air conditioning or Air cooling facility where liquor is consumed.

(e)

Adequate vehicle parking arrangement.

(II)

Within 100 meters from educational institution recognized by the Government, places of public worship such as Temples registered by the Endowments Department, Mosques registered with the Wakf Board, Churches and Hospitals. Provided that in the limits of Municipal Corporations and within the belt area of 5 Kms. of the periphery of Municipal Corporations, the distance restriction mentioned above shall be 50 meters.

(III)

Within 500 meters of predominantly residential area but licenses may however be sanctioned if the proposed premises is located on a main road used for shopping purposes.

(IV)

Within 50 meters of a Highway

(V)

Unless the applicant produces the permission or the no objection certificate from the local authority concerned for the sale of liquor at the premises by the applicant.

(VI)

Unless the applicant produces the lease deed on a Stamp paper for the proposed licensed premises from the owner of the premises wherever necessary

Explanation. - For the purpose of this rule

(a)

"Place of public worship" means a temple registered with the Endowment Department. Mosque registered with Wakf Board and Church and includes such other religious institutions, as the State Government may by order specify in this behalf;

(b)

"Educational Institutions" means any Primary school, Middle School and High School recognized by the State Government or Central Government, Junior College or any College affiliated to any University established by law;

(c)

"High Way" means National High way or State Highway and shall not include the part of the National Highway or State Highway which passes within the limits of Municipal Corporation, Municipal Council or the Gouthan in any village or Panchayat area.

(d)

"Hospital" means any hospital which is managed or owned by a local authority. State Government or Central Government or any private hospital having a provision of at least thirty (30) beds.

The distances referred above shall be measured from the mid-point of the entrance of the proposed premises along with the nearest path by which pedestrian ordinarily reaches to the midpoint of the nearest gate of the institution or a place of public worship, if there is a compound wall and if there is no compound wall to the mid-point of the nearest entrance of the Institution/place of public worship and in the case of residential areas to the entrance of the first house of such area as the case may be.

(2)

No licence shall be granted: -

(a)

In Form C-1 ("Club Licence) unless

(i)

the applicant is a registered club under the Societies Registration Act, 1860 with a bona fide membership of not less than 500 members and functioned as a club for not less than three years.

Provided that the club which are not registered under the Societies Registration Act, 1860 and which are not proprietary and are managed by a duly elected body of persons shall also be considered for grant of license subject to the condition that all the funds received by them are duly accounted for running the club and the profits are not distributed and appropriated by any individual or firm as per their bye-laws.

Provided further that the clubs which are not registered under Societies Registration Act, 1860 and which are proprietary in nature i.e., owned by individuals, Partnership firm or Companies shall also be considered for grant of license on

payment of license fee on par with a Licence in form IL-2B.

(ii)

the club is located in its own premises or premises allotted by the Government exclusively for setting up such club or located in a private premises taken on long lease for a period of at least 10 years from the date of first application for grant of new license and having a minimum area of 1,500 Sq.Mts. including built up area of at least 500 Sq.Mts. of this a minimum area of 50 Sq.Mts. has to be set apart for consumption.

(iii)

the club has facility for not less than three items out of the following items; namely: -

(a)

Billiards,

(b)

Lawn tennis or Table tennis.

(c)

Shuttle Badminton or Ball Badminton,

(d)

Gymnasium or Health Club,

(e)

Swimming pool.

(b)

In Form CS-1 (In-house consumption in Military canteens), unless the Officer in Command of the Station with the prior approval of Military Canteen Department makes the application;

Provided that the Commissioner may refuse grant of licence for reasons to be recorded.

(c)

In Form CS-2 (In-house sale in Military Canteen) unless the officer in command of the Station with the prior approval of the Military Canteen Department makes the application.

(d)

[Not given].

(e)

In Form CS-3 (Canteen Stores (In-house Storage and supply) unless the Military Officer in-charge of the Military Canteen Stores Department makes the application.

8.

Licensing authorities.

- The Commissioner of Prohibition and Excise shall be competent to grant the Licenses specified under Rule 4 except in the case of In-house sale in Military Canteen (Licence in Form CS-2) which shall be granted by the Prohibition and Excise Superintendent concerned.

9.

Failure to comply with directions entails rejection of application.

- Normally 15 days time shall be allowed to the applicant to rectify defects if any, or to comply with other directions of the Commissioner of Prohibition and Excise. Failure to remit fees or to rectify the defects or to comply with other directions relating to the premises, within the time allowed shall entail rejection of an application.

10.

Period of the Licence, commencement of business.

(1)

Every Licence granted under these rules, other than the Event permit, shall be valid for one year commencing from 1st July, ending with 30th June, of the succeeding year, subject to payment of licence fee as prescribed. Provided that the licence issued on or after the 1st July shall be valid upto the end of the 30th June, of the succeeding year.

Provided further that a licence granted for a part of licence period shall be valid for such period as may be specified by the Licensing authority.

Provided that the Event permit shall be valid for a period as specified therein and the permit holder shall pay the fee as prescribed.

Before issue of a licence the licensee shall execute a counter part agreement in form CG-1 on the stamp paper of

requisite value as per the provisions of the Indian Stamp Act, 1899.

11.

License Fee.

(1)

The annual licence fee for each of the licences except "Event permit" mentioned in Rule 4, shall be as amended, from time to time, at the rates as shown in the schedule appended to these rules. The annual licence fee shall be paid before the commencement of the lease year to which it relates in one lump sum".

Provided that in the case of an "Event permit" the fee shall be paid in one lumpsum at the rates as specified.

(2)

In case a licence is refused, the fee paid shall be refunded.

(3)

The licence fee shall be paid into the concerned Government Treasury in the District in which the licensed premises is located.

(4)

If a licence is surrendered in the middle of the licence period the Licence fee paid shall be forfeited to the Government.

(5)

Where a licence stands cancelled or suspended for any violation of the rules and conditions of licence, the Commissioner of Prohibition and Excise may order forfeiture of the License fee in full.

12.

Privilege Fee.

- Whenever Indian Liquor or Foreign Liquor is supplied to the holder of the Licence in the Form TD-1, TD-2, CI and EP-1 a Privilege Fee at the rate of 10% in excess of the Sale Price that the Andhra Pradesh Beverages Corporation Limited charges to the lease holders of by shop (A-4 Licence) shall be levied.

Provided that such privilege fee shall not be applicable to the clubs licensed under Second proviso to the Rule 7(2) (a)

(i).

13.

Transport permit.

- The transport permit may be issued authorizing movement of Indian Liquor and Foreign Liquor within the State from the units of the Andhra Pradesh Beverages Corporation Ltd., to the licensed premises. Such transport shall be governed by Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005.

14.

Import permit.

- The Import permit may be issued to a licence holder in Form CS-3 authorizing import of Indian Liquor and Foreign Liquor in to the State from the Distilleries and Breweries situated outside the State of Andhra Pradesh within the country and from the Bonded ware houses of the Customs Department of Government of India and such Import shall be governed by Andhra Pradesh Excise (Import, Export and Transport of Indian Liquor and Foreign Liquor-Permits) Rules, 2005.

15.

Sale or consumption permitted in the licensed premises only.

(1)

The licensee shall sell the liquor or allow consumption of liquor only in the premises specified in the licence.

(2)

No change or alteration of the licensed premises shall be made nor the licensed premises shifted elsewhere without the prior approval of the Commissioner of Prohibition and Excise.

Provided that such shifting will be permitted solely at the discretion of the Commissioner of Prohibition and Excise.

16.

License and plan of the licensed premises to be exhibited.

- The proforma licence shall be exhibited in a conspicuous place in the licensed premises. The Licensee shall also exhibit the approved drawings/plan of the licensed premises for verification by the inspecting authorities.

17.

Hours of Business.

- The Licensee in Form C-I, TD-1, TD-2 and EP-1 shall transact business in liquor from 10.00 a.m. to 11.00 p.m.
18.

Dry days.

- The licensed premises shall be closed and no business transacted on the following days declared as dry days:-

(i)

26th January - Republic Day

(ii)

15th August - Independence Day

(iii)

2nd October - Gandhi Jayanthi

Provided that the licensee shall not be entitled to any compensation whatsoever for the closure of the licensed premises.

19.

Licensee not to stock unauthorized Indian Liquor and Foreign Liquor.

- The Licensee shall not stock or sell in the licensed premises Indian Liquor and Foreign Liquor of any kind which he is not authorized to buy, stock or sell under the provisions of Act or Rules, Regulations or Orders made thereunder.

20.

The licensee not to stock Indian Liquor or Foreign Liquor at unauthorized place.

- The licensee shall not stock Indian Liquor and Foreign Liquor in any place other than the licensed premises. The licensee shall be held responsible for any Indian Liquor and Foreign Liquor unauthorizedly kept outside or nearby the licensed premises.

21.

Licensee to sell Indian Liquor and Foreign Liquor of specified Strength.

- No Foreign liquor or Indian liquor other than Wine, Gin, Beer, Whisky in strength than prescribed shall be sold under any license granted under these rules.

22.

Indian Liquor or Foreign Liquor not to be adulterated.

- The Indian Liquor and Foreign Liquor offered for sale or stored in the licensed premises shall not be substandard, deteriorated, spurious or in respect of which it is believed that some substance has been admixed so as to make it unfit for consumption by any process or manner, to stop it from being sold and to seize the same forthwith and take necessary further action as per rules.

24.

Indian Liquor and Foreign Liquor shall not be given or sold to certain persons.

- No Indian liquor or Foreign Liquor shall be sold or given to the following persons namely:-

(i)

Lunatics;

(ii)

Persons known or believed to be in a state of drunkenness:

(iii)

Persons about whom it is known or suspected that they are likely to participate in the commission of sedition, insurrection, breach of peace or any other similar offence threatening public peace and tranquility;

(iv)

Employees of the Police, Excise and Railway Departments or Chauffeurs of motor vehicles while engaged in discharging their duties:

(v)

Soldiers in uniform and the camp servants of military officers in their uniform:

(vi)

Persons below (21) years of age.

25.

Bottles for sale to carry labels.

- Every bottle of Indian liquor or Foreign Liquor kept for consumption in licenses in Forms TD-1, TD-2, C-1 and EP-1 shall carry Excise Adhesive label on the cap of the bottle in addition to the manufacturer's label as approved by the

Commissioner of Prohibition and Excise.

26.

Sale of Indian Liquor or Foreign Liquor duty paid.

(1)

The licensee shall sell only paid Indian Liquor and Foreign liquor.

(2)

The Licensees in Forms TD-1, TD-2, C-I and EP-1 shall purchase Indian Liquor and Foreign liquor from the allotted depot of the APBCL only on such terms as may be prescribed. However, the Commissioner of Proh. & Excise may permit, the licensee to purchase the requirement of Indian Liquor and Foreign Liquor from any other Depot of the APBCL.

27.

Standard measures to be kept.

- The licensee shall use only standard measures, as may be prescribed by the Commissioner of Prohibition and Excise from time to time. The measures should be got duly stamped by the Weights and Measures Department.

28.

Certain acts prohibited in the licensed premises.

- Notwithstanding any permit/licence granted by any authority. Gambling, dancing, any other acts of disorderliness or obscenity involving women within the licensed premises shall be strictly prohibited.

29.

Harbouring of certain persons prohibited.

- Persons, who are known or believed to have been convicted of any non-bailable offences, who are reputed prostitutes and habitual offenders, shall not be employed nor shall they be allowed to assemble or remain in the licensed premises, and if such persons visit licensed premises the matter shall be forthwith reported to the nearest Police Station by the licensee.

30.

Provision for a night watchman.

- No person other than a watchman shall be allowed to stay in the licensed premises during night time beyond the hours specified for closure of business.

31.

Employment of servants.

(1)

No women shall be employed for sale of Indian Liquor and Foreign liquor without the special permission of the Commissioner of Prohibition and Excise. No male person shall be appointed for such a purpose without the prior permission of the Prohibition and Excise Superintendent and every such person whether male or female before being employed shall obtain from the Prohibition and Excise Superintendent, a Nowkamama inform N-I on payment of a fee of Rs. 100/-.

(2)

No nowkamama shall be granted to the following persons;

(i)

Persons below twenty one years of age;

(ii)

Women,

(iii)

Persons suffering from any infectious or contagious diseases,

(iv)

Persons of unsound minds,

(v)

Persons who in the opinion of the Excise Superintendent is of a bad character.

(vi)

Persons whose Nowkamama or licenses has previously been cancelled within the preceding three years,

(vii)

Persons convicted of any offence under the Andhra Pradesh Excise Act, (Act of 17 of 1968) or the Narcotics Drugs and Psychotropic Substances Act, 1985 (Central Act 61 of 1985) within the preceding three years;

(viii)

Persons convicted under Sec. 482 to 489 of the Indian Penal Code, 1860 (Central Act 45 of 1860);

(ix)

Defaulters in payment of an amount due to the State Government under the Andhra Pradesh Excise Act or the Rules made thereunder.

(3)

All illegal things done in connection with the transport, possession or sale of Indian Liquor and Foreign Liquor or known to have been done in contravention of the provisions of the Act or the rules made thereunder by the servants of the licensee shall forthwith be reported to the Prohibition and Excise Superintendent, by the licensee, and such orders regarding continuance or otherwise of such servants in service as may be issued by the Excise Superintendent shall be carried out by the licensee.

(4)

Every act of the authorized agent or servant shall be deemed to be an act of the licensee".

32.

[Intimation to Prohibition & Excise Officer.

[Substituted by Notification No. G.S.Ms. 1880, dated 8.11.2005 (w.e.f. 24.5.2005).]

- The Excise officer of Andhra Pradesh Beverages Corporation Limited depot shall mark a copy of the transport permit to the Prohibition & Excise Station Officer shall inspect and verify the consignment within three days of the dispatch of the stocks from the Andhra Pradesh Beverages Corporation Limited Depot.

If the consignment is not verified within the stipulated time mentioned in the rule the licensee can take the stocks into account and sell them.]

33.

Consignments to be opened only in the presence of the Proh. & Excise Officer.

- The licensee shall open the boxes or packages of all Indian liquor and foreign liquors received in the licensed premises only in the presence of and after inspection by the local Proh. & Excise Officer or in his absence by any other Excise officer duly authorized in this behalf. If any box, packet, package or bottle is found doubtfully, carelessly or insufficiently sealed, the licensee shall produce it forthwith before the Proh. & Excise Officer for noting down such damages. The articles insecurely sealed or fastened may be returned by the licensee to the consigner with the prior approval of the Commissioner of Prohibition and Excise. The Commissioner of Prohibition and Excise may allow in such an event, replenishment of stock without fresh payment of duty. The Commissioner of Prohibition and Excise shall be competent to relax the application of this rule in special circumstances.

34.

No breakages or losses in transit allowed.

- The Licensee is not entitled as against the Government, of any compensation or refund or reduction of duty for any loss in breakage while stocks are in transit.

35.

Licensee to maintain accounts.

- The licensee shall maintain full and day to day accounts of liquors or beer received and disposed of in Form - DA-1, the pages of which are machine numbered serially. He shall also maintain such other returns as may be required by the Commissioner of Prohibition and Excise, and he shall, for each month, send monthly statements and returns before the 5th of the following months in the forms as may be fixed by the Commissioner to the Prohibition and Excise Superintendent and local Excise Inspector. All registers should be got authenticated before use by the Excise Superintendent.

36.

Licensee to maintain brand-wise accounts.

- The license shall also maintain in the Daily Brand-wise account in Form DA-2, and furnish a statement before the 5th of each month to the Excise Superintendent and local Proh. & Excise Inspector. The register shall be got authenticated by the Excise Superintendent before use and the pages machine numbered serially.

37.

Entries in the daily accounts register.

(1)

The licensee shall enter in the register in Form DA-1 the full particulars of transport permit or passes and documents or trip sheets, pertaining to the stocks received by him.

(2)

The moment a bottle is opened, the licensee shall make an entry in the Daily sales register and record the loose balance in each bottle at the end of the day excepting the licence holder in form CS-2, CS-3 and AL-1.

38.

Statements of accounts to be furnished.

- The licensee shall furnish on requisition any statement of accounts, statistics or any other particulars to the licensing authority or to any other officer of the Proh. & Excise Department not below the rank of a Proh. & Excise Sub-Inspector.

39.

Monetary transactions with officers prohibited.

- Any kind of monetary transactions unconnected with the official purpose between the licensee and the personnel of the Proh. & Excise, Police, Revenue Department and the personnel of the APBCL is strictly prohibited.

40.

Officers authorised to inspect premise.

- Any officer not below the rank of an Proh. & Excise Sub-Inspector may enter and inspect the licensed premises during the working hours and inspect and verify all the accounts, registers and stocks. It shall be competent for such inspecting officer to take such samples as might be necessary, or to take charge of such records and registers as might be necessary, and it shall be incumbent on the licensee to offer reasonable assistance for such inspecting officers to inspect, verify and to take samples. For any records removed from the premises, the Proh. & Excise Officer should give a receipt or in the alternative make an entry in the inspection book in this regard.

41.

Inspection book to be maintained.

- An inspection book inform IB-1, with machine numbered pages shall be kept in the shop for the use of the inspecting officers, and the licensee shall be responsible for the safe custody of it. The inspection book shall be the property of the Government and shall be handed over to the Excise Officer concerned on expiry of the period of license.

42.

License to be surrendered to the licensing authority on expiry.

- Every license granted under these rules shall be deemed to have been granted either jointly or severally to the licensee (s) named therein and shall on its expiry be surrendered by the licensee to the licensing authority".

43.

License to be cancelled under certain circumstances.

- If any licence or permit has been obtained by misrepresentation or by any other fraudulent means, the licence or permit so obtained is liable to be cancelled and the licensee or the permit holder is also liable for prosecution.

44.

Licensee and permit holders to abide by the provisions of the Act etc..

- Every holder of the license or permit under these rules shall comply promptly with all orders or directions issued from time to time under the Act. and the rules and orders made thereunder and shall abide by all the conditions of the licence.

45.

Suspension, withdrawal or cancellation of a licence or permit.

- A licence or permit may be suspended, cancelled or withdrawn in accordance with the provisions of Section 31 or 32 of the Act.

46.

Stocks on cancellation or withdrawal of licence.

- If a licence is cancelled or withdrawn during the currency of the Licence period the whole stock of IL and FL found in the shop shall be seized. The stock so seized shall be sold by the Excise Superintendent to any other licensee(s) and the proceeds of the sale shall after deduction of the expenses and any other sum due to the government shall be refunded to the licensee provided that the licensee is not cancelled on account of a Criminal case.

47.

Permit for sacramental Wine for bishop's Houses.

(1)

All Imports for Sacramental Wine shall be made through Andhra Pradesh Beverages Corporation Limited only. The Andhra Pradesh Beverages Corporation Limited shall apply inform SW A-1 to the Commissioner of Proh. & Excise.

(2)

On receipt of an application, the Commissioner of Proh. & Excise may, after making such enquiry as he may think necessary to ascertain the bonafides of the applicant and after verifying the other particulars furnished in the application grant the permit applied for in Form SW-1.

48.

Removal of difficulties.

- If there is any doubt or dispute regarding the application or interpretation of any of these rules, the decision of the Commissioner thereon shall be final.

The Schedule

(See Rule 11)

Sl.No.

Category of Licence

Licence Fee

(1)

(2)

(3)

1.

In house license in Form TD-1 for the sale of all kinds of Indian Liquor and Foreign liquor to be consumed in the Guest house run by the Andhra Pradesh Tourism Development Corporation Limited.

(a) Rs. 3,00,000/-

(Rupees Three Lakhs) per year in places where the population of Revenue village and its hamlets/ Municipality/Municipal Corporation does not exceed 3,00,000.

(b) Rs. 6,00,000/- (Rupees Six Lakhs) per year

in places where the population of the Revenue village and its hamlets/ Municipality/Municipal Corporation is above 3,00,000.

2.

In house Beer Pub license in Form TD-2 for the sale of Beer to be consumed in the Guest house run by the Andhra Pradesh Tourism Development Corporation Limited.

Rs. 2,00,000/- (Rupees Two Lakhs) per year.

3.

In house Club licence in form C-1 for the sale of all kinds of Indian Liquor and Foreign Liquor to the members of the Club to be consumed on the premises of the Club.

(a) Rs. 3,00,000/-

(Rupees Three lakhs) per year in places where the population of the Revenue village and its hamlets/ Municipality/Municipal Corporation does not exceed 3,00,000.

(b) Rs. 6,00,000/-

(Rupees Six lakhs) per year in places where the population of the Revenue village and its hamlets/ Municipality/Municipal Corporation is above 3,00,000.

Provided that-

(i) the license fee

in respect of clubs situated within a belt area of 5 kms. from the periphery of Municipal Corporation shall be at the rate of license fee of clubs situated within the limits of such Municipal Corporation; and

(ii) the license fee

in respect of clubs situated within a belt area of 2 km. from the periphery of Municipalities and Notified areas shall be at rate and Notified areas shall be at rate of license fee of clubs situated within the limits of such Municipalities and notified areas.

Provided further that

in respect of licenses granted in favour of Service Clubs attached to public institutions and Professional Associations where membership is restricted and the consumption does not exceed 3000 Quarts of IML and 10,000 bottles of Beer per year in the lease year for which license is granted, the license fee shall be Rs. 62,500/- (Rupees Sixty two thousand five hundred only) per year.

Provided further that where a Club falls within the belt area of a Corporation as well as Municipality and Notified area, the license fee payable shall be the fee applicable to the clubs situated in the belt area of the Corporation.

4.

in house consumption in Military Canteens (in Form CS-1) for the sale of all kinds of Indian liquor and Foreign liquor to be consumed in the premises of Military Canteen.

(a) Rs. 1,000/- per

year in places where the population of the Revenue village and its hamlets/Municipality/ Municipal Corporation does not exceed 10,000 population of the Revenue village and its hamlets/ Municipality/Municipal Corporation is above 10,000 but does not exceed 50,000/-

(b) [Not Given]

(c) Rs. 2,000/- per

year in places where the population of the Revenue village and its hamlets/Municipality/ Municipal Corporation is above 50,000 but does not exceed 3,00,000; and

(d) Rs. 2,500/- per

year in places where the population of the Revenue village and its hamlets/Municipality/ Municipal Corporation is above 3,00,000.

Provided that the

licence fee in respect of Military Canteen within a belt area of 5 k.Ms. from the periphery of Municipal Corporations shall also be at the rate of licence fee of Military Canteen situated within the limits of aforesaid Corporations;

Provided further that

the licence fee in respect of Military Canteen situated within 2 K.M. belt from the periphery of Municipalities and Notified areas shall also be at the rate of licence fee of Military Canteens

situated within the limits of such Municipalities and Notified areas.

Provided further that where a Military canteen falls within the belt area of a Corporation as well as Municipality and Notified area, the license fee payable shall be the fee applicable to the Military canteen situated in the belt area of the Corporation.

5.

Event Permit in Form EP-1 for sale and consumption of all kinds of Indian liquor and Foreign liquor to be consumed in the licensed premises.

(a) Rs. 1,875/-

(Rupees one thousand and eight hundred and seventy five only) per each day in places where the population of the Revenue village and its hamlets/Municipality/Municipal Corporation does not exceed 10,000;

(b) Rs. 2,500/-

(Rupees two thousand and five hundred only) per each day in places where the population of the Revenue village and its hamlets/ Municipality/Municipal Corporation is above 10,000 but does not exceed 50,000.

(c) Rs. 3,000/-

(Rupees three thousand only) per each day in places where the population of the Revenue village and its hamlets/Municipality/Municipal Corporation is above 50,000 but does not exceed 3,00,000;

(d) Rs. 4,000/-

(Rupees four thousand only) per each day in places where the population of the Revenue village and its hamlets/Municipality/Municipal Corporation is above 3,00,000 but not exceed 7,00,000, and

(e) Rs. 4,800/-

(Rupees four thousand and eight hundred only) per each day in places where the population of the Revenue village and its hamlets, Municipality/Municipal Corporation is above 7,00,000.

(f) For all clubs having C-I license the fee shall be Rs. 2,000/- (Rupees Two thousand) per each day.

6.

In house sale in Military Canteen (License in Form CS-2) for the sale of all kinds of Indian Liquor and Foreign liquor not to be consumed on the premises

(a) Rs. 1,000/-

(Rupees one thousand) per year in places where the population of the Revenue village and its hamlets/ Municipality/Municipal Corporation does not exceed 10,000.

(b) Rs. 1,500/-

(Rupees fifteen hundred) per year in places where the population of the Revenue village and its hamlets/ Municipality /Municipal Corporation is above 10,000 but does not exceed 50,000.

(c) Rs. 2,000/-

(Rupees two thousand only) per year in places where the

population of the Revenue village and its hamlets/Municipality/Municipal Corporation is above 50,000 but does not exceed 3,00,000.

(d) Rs. 2,500/-

(Rupees two thousand and five hundred only) per year in places where the population of the Revenue village and its hamlets/Municipality/Municipal Corporation is above 3,00,000.

Provided that the

licence fee in respect of Military Canteen (Retail) situated within a belt of 4 k.ms. from the periphery of Municipal Corporations shall also be at the rate of licence fee of Military Canteen situated within the limits of aforesaid corporations.

Provided further that

the licence fee in respect of Military Canteen (Retail) situated within a belt of 1 k.m. from the periphery of Municipalities and Notified areas shall also be at the rate of licence fee of Military Canteens situated within the limits of such Municipalities and Notified areas.

Provided also where a Military Canteen falls within the belt area of a Corporation as well as Municipalities and Notified area the licence fee payable shall be the fee applicable to the Military Canteens situated in the belt area of the Corporation.

7.

Canteen Stores (In house Storage and supply)

Licence (in Form CS-3) for the sale of all kinds of Indian liquor and Foreign liquor not to be consumed on the premises.

Rs. 30,000/- per

year irrespective of the population of the places where the Canteen is located.

8.

Airport transit lounge Licence (in Form AL-1)

for possession and sale of Foreign liquor and Beer to the International Air Passengers. Rs. 30,000/- per year irrespective of the population of the places where the Canteen is located.

No fee

FORM IHA-1

(See Rule 5(i))

(Affix Court fee stamp of Rs. 2/-)

Application for licence to sell Indian Liquor and Foreign Liquor by in-house (TD-1, TD-2, CS-1, CS-3, AL-1 and EP-1)

1. Name of the Applicant.
2. Full residential address
3. Details of the organization or partnership firm with registration particulars.
4. Details of premises to be licensed.
5. Details of any other licences held by him.
6. Date on which he can commence business.
7. In case of EP-1 the date/dates of the event.

I hereby declare that the particulars given above are true to the best of my knowledge and belief. If at a later stage any of the facts are found to be false the licence may be cancelled and I may be prosecuted as per the Andhra Pradesh Excise Act, 1968 or the Rules thereunder.

I hereby, undertake to abide by the rules and licence conditions prescribed under the Andhra Pradesh Excise Act, 1968.

Signature of the Applicant.

FROM IHA-2

(Rule 5(i))

Application for grant of club licence in Form C-1

1. Name of the applicant
2. Name and style of proposed licence.
3. Full address of the premises to be licenced.
4. Registration number and date of registration.
5. Whether copy of Bye-laws and Articles of Association enclosed. Yes/No.
6. No. of Members and number who have paid their membership fees for the last three years.
7. (a) Total area of club premises (in Sq. Mts.)

- (b)
- Built-up area (in Sq. Mts.)
8. Whether the club is located in its own building or in a building provided by the Government.
 9. Size of consumption room (in Sq. Mts.)
 10. Whether the club has the following facilities it

(i)

Billiards

Yes/No.

(ii)

Lawn Tennis/Table tennis.

Yes/No.

(iii)

Shuttle Badminton/Ball Badminton

Yes/No.

(iv)

Gymnasium/Health Club

Yes/No.

(v)

Swimming pool

Yes/No.

11. Whether there is kitchen for cooking and serving complete meals

Yes/No

12. Whether there is separate dining room/ dining area for serving meals

Yes/No

13. Whether separate toilet facilities are provided for male and females

Yes/No

14. Whether the club has been convicted of offences under the provisions of Excise Act, Customs Act or Narcotic Drugs Act, A.P. Intoxicating Liquor (Prohibition of Advertisement) Act, 1978 or any non-bailable offence.

I, hereby declare that the particulars given above are true to the best of my knowledge and belief. If at a later stage any of the facts are found to be false the licence may be cancelled and I may be prosecuted as per the Andhra Pradesh Excise Act, 1968 or the Rules thereunder.

I hereby, undertake to abide by the rules and licence conditions prescribed under the Andhra Pradesh Excise Act, 1968.

Signature of the Applicant.

FORM TD-1

(See Rule 4(ii))

Andhra Pradesh Tourism Development Corporation Limited run In-house licence for the sale of all kinds of Indian Liquor and Foreign Liquor to be consumed on the premises

I..... Prohibition and Excise Superintendent in consideration of the payment of a fee of Rs..... (Rupees..... only) the receipt of which is hereby acknowledged and hereby licence you.....to sell all kinds of Indian Liquor and Foreign Liquor on the premises.....bearing No.....the details of which are as follows:

Boundaries

1. East.
2. West
3. North
4. South

Locality village/town within the marginally noted boundaries During the lease year commencing from the 1st July, 20. And ending with the 30th June, 20 subject to the Following conditions and stipulations to be observed by you the said viz.,

1. The privilege extends to the sale of all kinds of Indian Liquor and Foreign liquor. No liquor shall be sold for removal from the licensed premises nor any liquor shall be sold otherwise than to the residents in the Tourism Guest House for their own use or that of their guests or to casual visitors who reserve the facility in the Guest House.
2. The licensee is prohibited from purifying, colouring and flavouring the liquor or mixing any material therewith and from blending another kind of liquor with it or to keep in his possession any liquor other than that authorized under this licence.
3. The licensee is prohibited from bottling liquors,
4. The possession or sale of diluted beer by the licensee is prohibited.
5. All Indian Liquor and Foreign Liquor sold under this licence shall be duty paid and obtained from the Andhra Pradesh Beverages Corporation Limited.
6. The licensee shall maintain and furnish to the Excise Superintendent statistics showing the consumption of all kinds of liquors separately.
7. This licence is not transferable No leasing out of the privilege is permissible.
8. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition and Excise.
9. The licensee shall not act in any manner prejudicial to the interest of the revenues of the Government.

Date.....day of.....20.....

Prohibition and Excise Superintendent.

FORM TD-2

(See Rule 4(ii))

Andhra Pradesh Tourism Development Corporation Limited run In-house Beer Pub Licence for the sale of Beer to be consumed on the premises of facilities run by Andhra Pradesh Tourism Development Corporation Limited.

I.....Prohibition and Excise Superintendent.....in consideration of the payment of a fee of Rs..... (Rupees ... only) the receipt of which is hereby acknowledged and hereby licence you..... to sell Beer on the premises bearing No.the details of which are as follows:

Boundaries

1. East
2. West
3. North
4. South

Locality village/town within the marginally noted boundaries During the lease year commencing from the 1st July, 20 And ending with the 30th June, 20.....subject to the Following conditions and stipulations to be observed by you the said viz.,

1. The privilege extends to the sale of Beer. No Beer shall be sold for removal from the licensed premises nor any liquor shall be sold otherwise than to the residents in the Tourism Guest House for their own use or that of their guests or to casual visitors who reserve the facility in the Guest House.
2. The licensee is prohibited from purifying colouring and flavouring the liquor or mixing any material therewith and from blending any other kind of liquor with it or to keep in his possession any liquor other than that authorized under this licence.
3. The licensee is prohibited from bottling liquor,

4. The possession or sale of diluted beer by the licensee is prohibited.
5. All Indian Liquor and Foreign Liquor sold under this licence shall be duty paid and obtained from the Andhra Pradesh Beverages Corporation Limited.
6. The licensee shall maintain and furnish to the Excise Superintendent statistics showing the consumption of all kinds of liquors separately,
7. This licence is not transferable. No leasing out of the privilege is permissible.
8. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition and Excise.
9. The licensee shall not act in any manner prejudicial to the interest of the revenues of the Government.

Date..... day of20

Prohibition and Excise Superintendent

FORM C-1

(See Rule 4(iii))

In-house Club Licence for the sale of all kinds of Indian Liquor and Foreign Liquor to the members of the club to be consumed on the premises of the club

IProhibition and Excise Superintendent of.....district in consideration the payment of Rs.....(Rupees.....only) the receipt of which is hereby acknowledged hereby licence you.....to sell all kinds of Indian Liquor and Foreign Liquor on the premises of the club located in premises No.....the details which are as follows:

1. East
2. West
3. North
4. South

Locality village/town within the marginally noted boundaries During the lease year commencing from the 1st July, 20 And ending with the 30th June, 20 subject to the Following conditions and stipulations to be observed by you the said viz.,

1. The privilege extends only to the service and consumption of all kinds of Indian Liquor and Foreign Liquor and other drinks containing alcohol in the consumption hall and lawn if liquor is to be served and consumed on special occasion outside the approved consumption hall or Lawn(s), an Event permit in Form EP-1 must be obtained.
2. The hours of transaction will form 11 a.m. to 11 p.m.
3. All liquors can be stocked in the approved premises noted above.
4. The licensee shall sell only duty paid Indian Liquor.
5. Indian Liquor can be served to the members as well as to their guests.
6. The Secretary of the club shall maintain and furnish the statistics showing the receipts and issue of the Indian Liquor in the prescribed register daily and furnish monthly statements before the 5th of every month to Prohibition and Excise Superintendent through the Proh. & Excise Sub Inspector, and Excise Inspector.
7. The licence is liable for cancellation for the following reasons.

- (i)
If the club is stopped abruptly,
- (ii)
If it is not functioning as a Club actually,
- (iii)
If is indulging in any unlawful acts,
- (iv)
If drinking therein is always in excess of reasonable limits.
- (v)
If the stock and quantity of Indian Liquor is other than that for which this licence is issued.
- (vi)
If persons other than those invited as guests by the members enter the club for the purpose of drinking and if they are supplied with the liquor.
- (vii)
If the Indian Liquor and Foreign liquor are not supplied the supervision of the Management of the club.

(viii)

If proper and correct accounts are not maintained and

(ix)

If Indian Liquor is purified or coloured or flavoured or any material is mixed there with or another kind of liquor is blended therewith.

8. All Indian Liquor and Foreign Liquor consumed under this licence shall be obtained from the Andhra Pradesh Beverages Corporation Limited.

9. This licence is not transferable.

10. The licensee shall not act in any manner prejudicial to the interests of the revenue of the Government.

Date.....day of.....20

Prohibition and Excise Superintendent.

FORM CS-1

(See Rule 4 (iv))

In-house Military Canteen Licence for the sale of all kinds of Indian Liquor and Foreign Liquor to be consumed on the premises

I.....Prohibition and Excise Superintendent of..... District in consideration of the payment of fee of Rs..... (Rupees only) receipt of which is hereby acknowledged, hereby licence you to sell all kinds of Indian Liquor and Foreign Liquor on the premises bearing House No..... the details of which are as follows:

1. East
2. West
3. North
4. South

Locality village/town within the marginally noted boundaries During the lease year commencing from the 1st July, 20And ending with the 30th June, 20 subject to the Following conditions and stipulations to be observed by you the said viz.,

1. Sale transactions of the Indian Liquor to be carried only on the above premises of the canteen. However, sale can take place in any the place, if a part of the regiment is drafted to the said place for training or other purpose.
2. Indian Liquor shall not be stocked in any place other than that noted above.
3. Indian Liquor shall not be sold to persons other than those attached to the regiment for which this licence is issued.
4. This licence shall not be transferable to any other person. If the terms of the contract of the licence is terminated by the competent military officer, the licence will be cancelled and a fresh licence shall be issued to another person on the recommendation of the said officer, on payment of full licence fee
5. The licensee shall sell only duty paid Indian liquor.
6. The licensee shall maintain and furnish to the Excise Superintendent statistics showing the import, receipts and issue of foreign liquor before the 5th of every month.
7. Any Proh. & Excise officer not less than the rank of Proh. & Excise Sub-Inspector shall be empowered to Check and verify the balance and receipts and issue of the Indian Liquor.
8. All Indian Liquor coined under this license shall be obtained from the holders of a licence inform CS-3
9. The Licence shall be subject to cancellation or suspension at will by the Commissioner of Proh. & Excise.
10. The licensee shall not act in any manner prejudicial to the interests of the revenues of the Government.

Date.....day of..... 20

Prohibition and Excise Superintendent.

FORM EP-1

(See Rule 4(viii))

Event permit for retail sale or serve of all kinds of Indian Liquor and Foreign liquor to be consumed on the premises.

I..... Prohibition and Excise Superintendent of..... District in consideration of the payment of fee of Rs (Rupees..... only) receipt of which is hereby acknowledged, hereby licence you to sell/serve all kinds of Indian Liquor and Foreign Liquor on the premises bearing House No.....the details of which are as follows:

1. East
2. West

3. North

4. South

Locality village town within the marginally noted boundaries During the lease year commencing from the 1st July, 20And ending with the 30 June, 20..... subject to the Following conditions and stipulations to be observed by you the said viz.,

1. The privilege extends to the sale or serve of all kinds of Indian Liquor and Foreign Liquor at refreshment halls in conation with races/meetings and public entertainments for consumption on the premises.
2. The licensee is prohibited from bottling the liquor.
3. The licensee is prohibited from purifying, colouring and flavouring the Indian Liquor or mixing any materials therewith and from blending another kind of Indian liquor with it or to keep in his possession other than Indian liquor authorized by this licence.
4. All Indian Liquor and Foreign liquor sold under this licence shall be obtained from the Andhra Pradesh Beverages Corporation Limited.
5. The licensee shall sell only duty paid Indian liquor.
6. Any Proh. & Excise office not less than the rank of Proh. & Excise Sub-Inspector shall be empowered to check and verify the balance and receipts and issue of the Indian Liquor.
7. The licence shall be subject to cancellation or suspension at will by the Commissioner of Proh. & Excise.
8. The licensee shall not at in any manner prejudicial to the interests of the revenues.

Dateday of.....20

Prohibition and Excise Superintendent.

FORM CS-2

(See Rule 4(v))

In-house Military Canteen Licence for the sale of all kinds of Indian Liquor and Foreign Liquor to defence personnel including Ex-servicemen not to be consumed on the premises

I..... Prohibition and Excise Superintendent of..... District in consideration of the payment of fee of Rs..... (Rupees..... only) receipt of which is hereby acknowledged, hereby licence you to sell/serve all kinds of Indian Liquor and Foreign Liquor on the premises bearing House No.....the details of which are as follows:

1. East
2. West
3. North
4. South

Locally village /town within the marginally noted boundaries During the lease year commencing from the 1st July, 20And ending with the 30th

June, 20..... subject to the Following conditions and stipulations to be observed by you the said viz.,

1. Indian Liquor and Foreign Liquor shall not be sold to persons other than those of defence personnel and Ex-servicemen.
2. The privilege extends to the sale of all kinds of Indian Liquor and Foreign liquor, Indian Liquor can be sold for removal from the licenced premises in sealed receptacles in quantities as per the scale prescribed for defence personnel by Government of India from time to time.
3. The licensee is prohibited from purifying, colouring and flavouring the liquor or mixing any material therewith and from blending another kind of liquor with it or to keep in his possession other than Indian Liquor authorized under this licence.
4. The licensee is prohibited from bottling Indian Liquor,
5. The possession or sale of diluted beer by the licensee is prohibited.
6. All Indian Liquor sold under this licence shall be obtained from the holders of licence in Form CS-3.
7. The licensee shall sell only duty paid liquor in sealed, capsuled bottles affixed with Excise Adhesive labels and manufacturers labels duly approved by the Commissioner of Prohibition, Excise as required under these rules.
8. The licensee shall maintain and furnish to the Prohibition & Excise Superintendent statistics showing the consumption of all kinds of Indian Liquor separately.
9. This licence is not transferable,
10. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition & Excise.
11. The licensee shall not act in any manner prejudicial to the interests of the revenue of the Government.

Date.....day of.....20

Prohibition and Excise Superintendent.

FORM SWA 1

(See Rule 47)

Application for a permit for import, possession and use of Sacramental wine

(Affix requisite value as per the provisions of Indian Stamp Act, 1899 from time to time)

1. Name of the Religious Institution
2. Name of the Head of Institution
3. Full address of the Institution
4. Purposes for which the permit is applied for
5. Quantity in litres, proof strength, quality or make of each variety forming the consignment.
6. Place from which the consignment will start
7. Place to which the consignment will reach
8. Route through which the consignment passes and mode of conveyance by Road/Canal/Rail/Air
9. Probable time required for transit

I declare that the particulars given above are true to the best of my knowledge and belief. If at any stage it is found that the particulars are wrong, or that I have resorted to fraud, I may be prosecuted.

I have gone through the Andhra Pradesh Excise Act, 1968 and the Rules made t hereunder and I am bound by the provisions thereof.

I shall obey the rules and regulations in force within the local area through which the consignment passes.

Date:

Signature of the Applicant.

FORM SW-1

(See Rule 47)

Sacramental Wine-Permit

Permit for the Import, possession and use of Sacramental Wine by the Bishop and Reverend for religious purposes for the year 20.....

The Bishop of.....or his successor in office/The Rev.....of the.....is hereby authorized to possess and use for religious purposes sacramental wine in casks or in bottles and to issue the same to the priests/pastors within his jurisdiction or to any visiting priest/pastor of the community for religious purposes in accordance with ancient custom subject to the following conditions:

1. Wine shall be issued for Sacramental purpose only and under the personal control of the Bishop/Reverend of the..... to priests/pastors who hold licenses for its possession and use or to visiting priests/pastors from areas to which the Andhra Pradesh Excise Act, 1968, has been extended who stand in need of wine for sacramental purposes, and to none else or for any other purposes.
2. Wine that can be possessed under the terms of this permit shall not exceed in a year.
3. In this permit "Wine" includes grape juice and such other Indian Liquor as the State Government, may from time to time approve for sacramental purposes.
4. Wine issued under the terms of this permit may be transported under a covering certificate issued by the Bishop/Reverend of the.....
5. All requirements of wine shall be obtained from the Andhra Pradesh Beverages Corporation Limited,
6. All Bills for the purchase of wine shall be preserved and produced for inspection on demand by any Excise officer not below the rank of Proh. & Excise Sub-Inspector. Accounts shall be maintained of at receipts and all expenditure and issues and consumption of wine.
7. This permit shall should be used for the purposes for which it is issued. Neither this permit nor the Indian liquor covered by it shall be carelessly or otherwise be permitted to be used by any one for other purposes. Abuse shall be carefully guarded against.
8. This permit will cover every use to which sacramental wine is put according to the religious custom of the denomination concerned.

Commissioner of Prohibition and Excise.

FORM CS-3

(See Rule 4(vi))

Canteen Stores (In-house Storage and supply) License for the sale of all kinds of Indian Liquors and Foreign Liquors to holders of CS-1 and CS-2 licenses only and not to be consumed on the premises

I Proh. & Excise Superintendent of.. district in consideration of the payment of a fee the receipt of which is hereby acknowledged hereby licence you..... to sell all kinds of Indian Liquors and Foreign Liquors in the premises bearing No.....the details of which are follows:

1. The privilege extends only to the sale of all kinds of Indian Liquors and Foreign Liquors in quantities not less than 9 litres in sealed receipts, to holders of licence inform CS-1 and CS-2 only and none others. The licensee shall be bound to issue a memo in the prescribed Form enclosed in quadruplicate, one form to be kept on his record, the second to be given to the licensed purchaser, the third to be dispatched to the Proh & Excise Superintendent of the place of importing and the fourth to be dispatched to the local inspector for verification and checking of accounts.

Noted. - If the headquarters of the Proh. & Excise Superintendent or the place of importing is outside the district the third copy intended for him may be dispatched to him through registered post with acknowledgment due and if his headquarters are within the district receipt obtained from him and all the acknowledgment receipts shall be preserved in the serial order of the memos (vide specimen form enclosed).

2. The Licensee shall sell only duty paid Indian Liquors.

3. The licensee is prohibited from purifying, colouring and flavouring the Indian liquors or mixing any material therewith and from blending another kind of Indian liquor with it or keep in his possession and sell Indian liquors not authorized under this licence,

4. The licensee can import all kinds of Indian liquors and foreign liquor from outside the Andhra Pradesh State after obtaining a permit under.....

5. The licensee shall maintain and furnish to the Proh. & Excise Superintendent statistics showing the import receipts and issues of all kinds of Indian Liquors separately.

6. The licence is not transferable.

7. The licensee shall sell bottled Indian Liquor only in scaled and capsuled bottles affixed with excise adhesive labels and manufacturer's labels duly approved by the Commissioner of Prohibition and Excise.

8. The licence shall be subject to cancellation or suspension at will by the Commissioner of Prohibition and Excise.

9. The licensee shall not act in any manner prejudicial to the interest of the revenue of the Government.

Dated day of.....20.....

Prohibition and Excise Superintendent.

Memo Forms

Dated

Name of the licensed Canteen Stores (In-house Storage and supply) License Address of the licensee.

Name of the licensed purchaser.

Address of the licensed purchaser

Foreign Liquor

Details of issue

Total Quantity in terms of litresSpiritsWinesBeer

Indian Liquor

SpiritsWinesBeer

Total

Note. - The issues noted above were made on the basis of the transport permit issued by The Prohibition and Excise Superintendent.....No.....dated.....and an amount of Rs.....towards countervailing duty, thereon credited in the State Bank or Government Treasury under appropriate heads on each book folio No.....

Dated:

Signature of the Vendor,Name of the Licensee.

FORM AL-1

(See Rule 4(vii))

Air port transit lounge licence for possession and issue of liquor in bottled form to international Air Passengers transiting the Air Port.

License is hereby granted and issued to the Manager, Indian Tourism Development Corporation...../Officer-in-charge of duty free shop at the.....Air Port to possess and to issue bottled foreign liquors to bonafide International Air Passengers transiting the..... Civil Air Port. This licence is valid for the period from.....to and it will be subject to the conditions to be observed by the licensee.

Conditions

1. The licensee shall be bound by the provisions of the Andhra Pradesh Excise Act, 1968 and Rules made there under as amended from time to time and also by the following conditions which are special to this licence.
2. The privilege conferred herein is restricted to the possession and issue of foreign liquor including duty free bottled foreign liquor to bonafide international passengers transiting Civil Air Port.
3. The liquor permitted to be possessed under this licence shall be obtained from sources outside the State of Andhra Pradesh or from the Customs Bond.
4. A transport permit of customs clearance permit will be obtained by the Officer-in-charge of the duty free facility whenever foreign liquor is obtained either from customs bond or from sources other than customs bond.
5. The officer-in-charge of the duty free facility shall, when required, produce evidence to show that the foreign liquor has been obtained lawfully. This licence shall also be deemed to cover the import of such liquor into this State.
6. The quantity of foreign liquor possessed under this licence shall not, at one time exceed (2,500 Quart bottles - Two thousand Five hundred quart bottles).
7. The licence shall cease to operate and shall be cancelled in the event of infringement of any of the foregoing conditions and such other conditions as may infringement of any of the foregoing conditions and such other conditions as may be prescribed from time to time.
8. This licence and stocks of foreign liquor possessed or issued under it shall be open to inspection by any officer of the Prohibition and Excise Department not below the rank of Prohibition and Excise Inspector. The licensee shall give information and furnish such records of other materials as may be required by the officer in connection with his inspection.

9. The licence is issued Free or Fee.

Sale of the issuing authority:

Number of licenceDistrict

Commissioner of Prohibition and Excise.

To

The Manager,

ITDA/Officer-in-charge of duty free facility at Air Port.

FORM IB-1

(See Rule 41)

Inspection Book

1. Date of Inspection
2. Time of inspection
3. Name of the Officer inspecting with his designation.
4. Quantity of liquors as per stock books.
5. Quantity found actually in stock.
6. Difference if any, and the reasons given by the licensee.
7. General conditions of the licensed premises.
8. Other remarks or directions, if any.

Signature of the Inspecting Officer.

Form NA-1

(See Rule 31)

Nowkarmama

Date

(0)

District,

Here affix photograph, of the agent or the Authorised Servant.

(1)

Mandal,

(2)

Village

(3)

(i) Name of the licence

(ii) Number of the licence and date

(4)

(i) Name of the
licensee

(ii) Address,

(5)

(i) Name of the Agent or the authorised Servant

(ii) Date of Birth/age.

(iii) Father's name.

(iv) Identification Marks of the Agent or the
authorised servant,

(6)

Signature or thumb-impression of the Agent or
the authorised servant

(7)

Signature or thumb-impression of the
Licensee.

Seal:

Place:

Date:

Prohibition and Excise Superintendent

Note 1. - The agent or the authorised servant shall sign or affix his thumb impression before the Proh. & Excise Superintendent.

2. The Proh. & Excise Superintendent shall attest the signature or thumb impression and also sign across the Photograph of the agent/authorised servant under his official seal in token of its correctness.

3. The Nowkamama shall be issued in duplicate and the duplicate retained in the Office of the Proh. & Excise Superintendent.

FORM CG-1

(See Rule 5)

Counterpart Agreement to sell Indian Liquor, Foreign Liquor by In-house

(As required under Section 29 of the A.P. Excise Act, 1968)

I/We..... s/o..... age.....years have severally jointly obtained the License in Form II..... under the name and style of M/s.....at premises No.....for the period from..... to.....on Licence Fee/Proportionate license fee of Rs.....

I/We do hereby affirm, agree and covenant with the licensing authority:

(i)

that, I/We shall be severally/jointly responsible to abide by the terms and conditions of the License as laid down in the license in Form..... dated..... and The Andhra Pradesh Excise grant of licence of selling by in house (Sale of Indian Liquor and Foreign Liquor by In-House and Conditions of Licence) Rules, 2005.

(ii)

That, I/We shall abide by the provisions of Andhra Pradesh Excise Act, 1968 and the Rules and Orders there under existing and also those that would be issued from time

(iii)

That. I/We shall abide by all general conditions applicable to the sale of intoxicants and also the instructions issued by the Commissioner of Prohibition and Excise, in this regard from time to time.

(iv)

That, I/We shall be bound to pay the license fee. excise duty and security deposit or any enhanced license fee, excise duty and security deposit, and the like levied from time to time.

(v)

That, I/We shall be bound to pay the penalties or privilege fee levied from time to time.

(vi)

That, I /We hereby agree that the licence is liable to be cancelled on the basis of any adverse report of investigation for any lapse which amounts to contravention of any rule or any condition of licence or any other provision of Law and also for any conviction in any criminal case at any time either in the past or in future.

(vii)

If the license is surrendered in the middle of the lease period, I/We shall not be eligible for refund of License Fee.

(viii)

That, If I/We fail to pay the gallonage fee. Excise Duty, Penalties or Privilege fee etc., if any due to the Government on time, the license is liable to be cancelled and the entire amount so due, without prejudice to any other mode of recovery, may be recovered by way of distraining my/our movable and immovable property whatsoever I/We possess and selling the said properties under the Andhra Pradesh Revenue Recovery Act.

(ix)

That I/We declare that I/We am/are not already holding any Licence in form

This agreement is executed in favour of the licensing authority and the said authority may enforce the above terms and conditions agree to by me/us.

Place:Date:

Signature of the Licensee/Licensees

Witness (1)(2)

I certify that Sri/Sarvasri s/o R/o is known to me/H.No..... Name of the locality, village or town is known to me, identified by Sri Sarvasri know to me, executed the agreement and signed before me.

Signature of the Licensing Authority Official Designation and Seal

FORM DA-1

(See Rule 35)

Daily Account Register

(Separate page should be set apart for each type of liquor with an index in the front page of the Register)

Name of the Licensee Licensee No. and Date

Sl. No.

Date, Month and year

Opening Stock

Receipts

Issues

No. of Bottles

Quarts, Pints, Nips, Dips

No. of Bottles

Quarts, Pints, Nips, Dips

No. of Bottles

Quarts, Pints, Nips, Dips

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Balance

No. of date of T.P. In respect of receipts Shown
in Col. 5, 6.

Signature of the lease -holder

Remarks

No. of Bottles

Quarts, Pints, Nips, Dips

(9)

(10)

(11)

(12)

(13)

Form D.A.-2

(See Rule-36)

Daily Brand-wise Account Register

(Separate page should be set apart for each type of liquorwith an index in the front page of the Register).

Name of the LicenseeLicense No. and Date

Opening Stock

Receipts

Date

Item

Quart

Pint

Nips

Dips

Quarts

Pints

Nips

Dips

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Issue

Balance

Quart

Pint

Nips

Dips

Quarts

Pints

Nips

Dips

Signature of the lease holder

(11)

(12)

(13)

(14)

(15)

(16)

(17)

(18)

(19)

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Translation